in question were not framed or conducted on that theory. They were consequently without authority in law and could not affect the rights of appellees.

While there are expressions in the opinion in *Gilseth* v. *Risty,* 46 S. D. 374, decided after these suits were begun, which, standing by themselves, might be regarded as supporting the view that the proceedings now in question were authorized by the statutes of South Dakota, the court clearly rested its decision upon other grounds. It is the duty of the federal courts, in suits brought in or removed to the districts courts, to decide for themselves all relevant questions of state law, and while they will follow the decisions of state courts as to the interpretation of a state statute, we do not think that the case of *Gilseth* v. *Risty, supra,* so clearly or decisively passed upon the question here involved as to control our decision. *Kuhn* v. *Fairmount Coal Co.,* 215 U. S. 349; *Barber* v. *Pittsburgh, &c. Railway,* 166 U. S. 83, 99; and see *Edward Hines Yellow Pine Trustees* v. *Martin,* 268 U. S. 458.

As our decision in these cases turns on the construction and application of the state law, we do not pass upon the constitutional questions raised. See *Bohler* v. *Calloway,* 267 U. S. 479, 489; *Chicago, G. W. Ry.* v. *Kendall,* 266 U. S. 94, 97–98. They are, however, questions of substance and sufficient to give the court jurisdiction to pass on the whole case. *Greene* v. *Louisville & Interurban R. R. Co., supra; Chicago, G. W. Ry.* v. *Kendall, supra; Bohler* v. *Calloway, supra.*

The objections to the exercise of equity jurisdiction in these cases require no extended comment. When the appellees filed their bills, the drainage project had been completed and construction warrants had been issued for the work done; benefits apportioned to the lands of the appellee had been tentatively fixed and notice of a hearing for the equalization of benefits had been given. The steps next in order after the hearing would have been the